

Title: Constitutional Fidelity as Economic Security: Re-centering America on Its Supreme Law

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Abstract

The United States Constitution is widely understood as the *suprema lex terrae*—the supreme law of the land.¹ Less appreciated is its role as an economic constitution, designed to ensure stability, prosperity, and sustainability. This Article argues that deviations from constitutional fidelity constitute not only legal violations but also *prima facie* economic sabotage.² By tolerating governmental overreach, judicially-created doctrines *void ab initio*,³ and systemic misuse of federal funds, the United States has undermined the prosperity its constitutional framework was designed to guarantee. A return to strict fidelity—through structural reforms like the American Butterfly Effect (ABE) and Civil Rights Restoration Act (CRRRA)—offers both a legal and economic path to renewal.

I. Introduction

The Constitution begins with “We the People,” affirming that sovereignty originates not in the federal or state governments but in the citizenry.⁴ Both state and federal governments are artificial corporate entities, endowed with limited powers derived solely from constitutional delegation.⁵ As Chief Justice Marshall observed, “the government of the Union...is, emphatically and truly, a government of the people.”⁶

Over time, however, both federal and state governments have exceeded their constitutional boundaries, often cloaking overreach in vague doctrines or fabricated necessity. Judicial creations such as Qualified Immunity (QI), which lack any textual or historical basis in the Constitution,⁷ operate *ultra vires* and enable systemic violations of individual rights.⁸ Similarly, misuse of federal funds by states—whether through misapplication of Medicaid allocations, transportation funds, or housing grants—constitutes *fraus legis* and undermines the People’s welfare.

The consequences of these deviations are profound. Essentials of life such as housing, healthcare, education, transportation, and access to justice have been monopolized and profitized, leaving millions of citizens without the means to flourish.⁹ Meanwhile, military spending and enforcement

budgets expand unchecked, redirecting funds away from the very people government was created to serve. The Constitution is not only a charter of liberty—it is an economic blueprint for national prosperity. To deviate from it is not only unlawful but economically destructive.

This Article advances three central claims:

1. The Constitution is an economic constitution as much as it is a political one.
2. Deviations from constitutional fidelity are *prima facie* violations that also constitute economic sabotage.
3. Restoring fidelity through frameworks like ABE/CRRA is necessary for both constitutional integrity and sustainable prosperity.

II. The Constitution as Economic Charter

The Constitution is more than a political framework; it is an economic constitution. Its provisions—particularly those concerning commerce, postal infrastructure, coinage, bankruptcy, and contracts—form the blueprint for prosperity and stability. Any deviation from these provisions is not merely unlawful but constitutes *fraus legis* and results in economic distortion.

A. The Commerce Clause

The Commerce Clause grants Congress the power “[t]o regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.”¹ This clause has long been recognized as a cornerstone of national unity, preventing interstate trade wars and establishing a uniform economic order.

Chief Justice Marshall, in *Gibbons v. Ogden*,² defined “commerce” broadly to include navigation, confirming Congress’s supremacy in regulating interstate trade. Yet, this power has limits. In *United States v. Lopez*,³ the Court struck down the Gun-Free School Zones Act, holding that mere possession of a firearm in a local school zone bore no substantial relation to interstate commerce. Similarly, in *United States v. Morrison*,⁴ the Court invalidated provisions of the Violence Against Women Act, rejecting attempts to stretch commerce to cover non-economic violent crime.

By contrast, in *Wickard v. Filburn*,⁵ the Court upheld regulation of wheat grown for personal consumption on the theory that, in aggregate, such conduct affected interstate commerce. While expansive, *Wickard* underscores the danger of conflating private, personal activities with commerce. The principle of *expressio unius est exclusio alterius* dictates that Congress’s enumerated power to regulate commerce does not extend to regulating citizens themselves when acting outside of commerce. Treating private conduct as commerce is *ultra vires* and *void ab initio*.

- U.S. CONST. art. I, § 8, cl. 3.

- *Gibbons v. Ogden*, 22 U.S. (9 Wheat.) 1 (1824).
- *United States v. Lopez*, 514 U.S. 549 (1995).
- *United States v. Morrison*, 529 U.S. 598 (2000).
- *Wickard v. Filburn*, 317 U.S. 111 (1942).

B. The Postal Clause

The Postal Clause empowers Congress “[t]o establish Post Offices and post Roads.”⁶ Far from being a minor administrative provision, this clause laid the foundation for the nation’s commercial infrastructure.

In *Ex parte Jackson*,⁷ the Court affirmed Congress’s plenary authority over the postal system, noting its centrality to national commerce. Postal routes became the backbone of interstate exchange, later evolving into railroads, highways, and shipping channels. The continuity of commerce—foreign and domestic—rests on this infrastructure.

Interference with or underfunding of USPS operations constitutes more than administrative neglect; it disrupts the constitutional blueprint for commerce itself. To undermine postal infrastructure is to commit *fraus legis*—a fraud upon the law—by eroding the economic arteries of the Republic.

- U.S. CONST. art. I, § 8, cl. 7.
- *Ex parte Jackson*, 96 U.S. 727 (1878).

C. Coinage, Bankruptcy, Contracts Clauses

The framers, informed by the economic chaos under the Articles of Confederation, recognized that a stable and predictable economic system was essential to liberty.

The Coinage Clause grants Congress the exclusive power “[t]o coin Money, regulate the Value thereof, and of foreign Coin.”⁸ Uniform currency prevents states from undermining economic stability with conflicting tender laws.

The Bankruptcy Clause empowers Congress “[t]o establish...uniform Laws on the subject of Bankruptcies throughout the United States.”⁹ This was intended to prevent debt bondage and ensure fair treatment of debtors and creditors alike. In *Sturges v. Crowninshield*,¹⁰ Chief Justice Marshall invalidated a state bankruptcy law that impaired contracts, reaffirming the federal government’s exclusive domain in this area.

Finally, the Contracts Clause provides that “No State shall...pass any...Law impairing the Obligation of Contracts.”¹¹ While limited by *Home Building & Loan Ass’n v. Blaisdell*,¹² which permitted temporary modification of contracts during economic emergency, the Clause nonetheless anchors private economic relationships in predictability.

Together, these provisions form a self-healing system of economic fidelity: stable currency, uniform bankruptcy rules, and enforceable contracts create the conditions for prosperity. To deviate from them is to destabilize the economy itself.

- U.S. CONST. art. I, § 8, cl. 5 (coinage).
- U.S. CONST. art. I, § 8, cl. 4 (bankruptcy).
- U.S. CONST. art. I, § 10, cl. 1 (contracts).
- *Sturges v. Crowninshield*, 17 U.S. (4 Wheat.) 122 (1819).
- *Home Bldg. & Loan Ass'n v. Blaisdell*, 290 U.S. 398 (1934).

III. The Tenth Amendment and the Myth of Broad Police Power

A. Text & Original Intent

“The powers not delegated to the United States by the Constitution, nor prohibited by it to the States, are reserved to the States respectively, or to the people.”¹

This is a rule of reservation, not of expansion.² It affirms that federal power is enumerated and limited, while state power is confined within the bounds of the Constitution and subject to the supremacy of federal law. Madison stressed the balance in Federalist No. 45.³

- U.S. CONST. amend. X.
- *United States v. Darby*, 312 U.S. 100 (1941).
- THE FEDERALIST NO. 45 (Madison).

B. Misuse of Police Power Doctrine

Courts recognized a state’s “police power” to enact laws for health, safety, and welfare, but it has never been unlimited. *Slaughter-House Cases* warned that expansive readings could obliterate federal rights.⁴ Regulating private citizens acting outside commerce (e.g., purely private travel) as if they are commercial actors is *ultra vires* and *void ab initio*, not an exercise of police power.

C. Right to Travel & Private Activity

The right to travel is fundamental. *Shapiro v. Thompson*⁵ and *Saenz v. Roe*⁶ struck down penalties on movement. Treating non-commercial travel as licensable commerce is *fraus legis*.

IV. Supremacy Clause and Hierarchy of Sovereignty

A. Constitutional Hierarchy

“This Constitution, and the Laws of the United States which shall be made in Pursuance thereof... shall be the supreme Law of the Land...”¹

Hamilton articulated supremacy in Federalist 33. *Marbury* declared unconstitutional laws void; *McCulloch* barred state obstruction of legitimate federal functions.

- U.S. CONST. art. VI, cl. 2.
- THE FEDERALIST NO. 33 (Hamilton).
- *Marbury v. Madison*, 5 U.S. (1 Cranch) 137 (1803).
- *McCulloch v. Maryland*, 17 U.S. (4 Wheat.) 316 (1819).

B. States Cannot Nullify Federal Rights

Cooper v. Aaron held states bound by the Court’s constitutional interpretations; states cannot nullify federal rights.⁵⁻⁶

C. The People as Final Sovereigns

“We the People” grounds ultimate sovereignty in citizens; the Tenth Amendment reserves undelegated powers to the people. Locke: government is a fiduciary trust; *ultra vires* acts lack legitimacy.

V. Consequences of Constitutional Deviation

A. Economic Monopolization

Monopolization of essentials (healthcare, housing, education, transport, justice) reduces citizens to dependency. *Lochner* (controversial) highlights economic liberty’s constitutional dimension. *Northern Securities* fought concentrated power; when government enables monopoly over essentials, it abandons fiduciary duty.

B. Judicial Invention of Doctrines

Qualified Immunity (*Harlow*) lacks constitutional basis (see Baude). Chevron deference shifts interpretive power to agencies. Such devices are *ultra vires*, *void ab initio*, and *fraus legis* when they thwart remedies and accountability.

C. Misallocation of Federal Funds (*Fraus Legis*)

Diversion/underfunding of Medicaid, housing, transportation, and education alongside outsized enforcement/military budgets defies statutory purposes (*Train*).

D. Structural Effects

The cumulative result is national decline—rising costs, reduced justice access, and diminished liberty. *Carter Coal*: “commerce is intercourse for the purposes of trade.” Mistaking citizens for commerce collapses the constitutional economy.

VI. Case Studies

A. Domestic Troop Deployment

Posse Comitatus restricts military in civilian law enforcement absent authorization; Insurrection Act requires actual insurrection/obstruction. *Youngstown* limits executive action without Congress. Unilateral domestic deployment is *ultra vires*.

B. Healthcare & Big Pharma

Public funds should serve general Welfare. *Actavis* scrutinized “pay-for-delay”; tolerating monopolistic pricing while underfunding public health is *fraus legis*, contrary to Due Process/Equal Protection.

C. Transportation & Licensing

Treating every driver as a commercial actor collapses the liberty/commerce distinction. *Saenz* and *Slaughter-House* reinforce limits: private, non-commercial travel is not “commerce among the several States.”

D. Structural Parallels

1. Government exceeds enumerated authority
2. Judiciary legitimizes deviation via invention or deference
3. Citizens absorb economic/liberty harms

VII. The ABE/CRRA Framework as Remedy

A. Principles

1. Fidelity to constitutional text and existing statutes (*suprema lex terrae*).
2. Restoration, not expansion, of power.
3. Economic security through citizen investment.

B. Legal Basis

1. Constitutional Foundations

Preamble's general Welfare + Spending Clause authorize Congress to allocate for the common good; from *Butler* to *Dole*, courts affirm broad spending discretion.

2. Statutory Compatibility

Existing statutes (CRA; False Claims Act) support reclaiming misused funds and reinvesting constitutionally.

C. Reparations as Constitutional Fidelity

CRRA addresses harms from overreach and fulfills Due Process and Equal Protection. *Brown* teaches systemic harm requires systemic remedy.

D. Self-Healing Through Economic Blueprint

Redirected funds → shrink disparities → raise productivity → reduce reliance. *Aequitas sequitur legem*—equity follows the law.

VIII. Conclusion

The Constitution is both supreme law and economic blueprint. Deviations—monopoly, invented doctrines, fiscal misallocation, executive overreach—breed inequality and decline. Fidelity provides a lawful path to renewal. ABE/CRRA realigns resources with constitutional purposes, restoring prosperity and trust.

Supremacy subordinates governments to the Constitution; sovereignty rests with We the People. Governments hold only delegated powers. *Ultra vires* acts are *void ab initio*. As Justice Jackson cautioned in *Youngstown*, the Constitution is neither a suicide pact nor a blank check. It is a blueprint. To follow it is to flourish; to abandon it is to perish. Time to set the nation back on the right path.

Appendix — Footnotes (as provided)

Section II

1. U.S. CONST. art. I, § 8, cl. 3.
2. *Gibbons v. Ogden*, 22 U.S. (9 Wheat.) 1, 189–90 (1824).
3. *United States v. Lopez*, 514 U.S. 549, 561 (1995).
4. *United States v. Morrison*, 529 U.S. 598, 617 (2000).
5. *Wickard v. Filburn*, 317 U.S. 111, 125–29 (1942).
6. U.S. CONST. art. I, § 8, cl. 7.

7. *Ex parte Jackson*, 96 U.S. 727, 732–33 (1878).
8. U.S. CONST. art. I, § 8, cl. 5.
9. *Id.* § 8, cl. 4.
10. *Sturges v. Crowninshield*, 17 U.S. (4 Wheat.) 122, 200–01 (1819).
11. U.S. CONST. art. I, § 10, cl. 1.
12. *Home Bldg. & Loan Ass’n v. Blaisdell*, 290 U.S. 398, 426–29 (1934).

Section III

1. U.S. CONST. amend. X.
2. *United States v. Darby*, 312 U.S. 100, 124 (1941).
3. THE FEDERALIST NO. 45 (James Madison) (Clinton Rossiter ed., 1961).
4. *Slaughter-House Cases*, 83 U.S. (16 Wall.) 36, 62–63 (1873).
5. *Shapiro v. Thompson*, 394 U.S. 618, 629–31 (1969).
6. *Saenz v. Roe*, 526 U.S. 489, 500–04 (1999).

Section IV

1. U.S. CONST. art. VI, cl. 2.
2. THE FEDERALIST NO. 33 (Alexander Hamilton) (Clinton Rossiter ed., 1961).
3. *Marbury v. Madison*, 5 U.S. (1 Cranch) 137, 177 (1803).
4. *McCulloch v. Maryland*, 17 U.S. (4 Wheat.) 316, 431 (1819).
5. *Cooper v. Aaron*, 358 U.S. 1, 17 (1958).
6. *Id.* at 18.
7. U.S. CONST. pmbi.
8. U.S. CONST. amend. X.
9. JOHN LOCKE, SECOND TREATISE OF GOVERNMENT § 149 (C.B. Macpherson ed., Hackett Publ’g Co. 1980) (1690).

Section V

1. *Lochner v. New York*, 198 U.S. 45, 57 (1905).
2. *N. Sec. Co. v. United States*, 193 U.S. 197, 327–28 (1904).
3. *Harlow v. Fitzgerald*, 457 U.S. 800, 818 (1982).
4. William Baude, *Is Qualified Immunity Unlawful?*, 106 CALIF. L. REV. 45, 55–56 (2018).
5. *Chevron U.S.A., Inc. v. Nat. Res. Def. Council, Inc.*, 467 U.S. 837, 842–44 (1984).
6. *Train v. City of New York*, 420 U.S. 35, 44–46 (1975).
7. *Carter v. Carter Coal Co.*, 298 U.S. 238, 297 (1936).

Section VI

1. 18 U.S.C. § 1385 (2021).
2. 10 U.S.C. §§ 251–255 (Insurrection Act).
3. *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U.S. 579, 587–89 (1952).
4. U.S. CONST. pmb.
5. *FTC v. Actavis, Inc.*, 570 U.S. 136, 140–42 (2013).
6. *Saenz v. Roe*, 526 U.S. 489, 500–04 (1999).
7. *Slaughter-House Cases*, 83 U.S. (16 Wall.) 36, 62–63 (1873).

Section VII

1. U.S. CONST. pmb.
2. U.S. CONST. art. I, § 8, cl. 1.
3. *United States v. Butler*, 297 U.S. 1, 65–67 (1936).
4. *S.D. v. Dole*, 483 U.S. 203, 206–07 (1987).
5. Community Reinvestment Act of 1977, 12 U.S.C. §§ 2901–2908.
6. False Claims Act, 31 U.S.C. §§ 3729–3733.
7. *Brown v. Bd. of Educ.*, 347 U.S. 483, 495 (1954).

Section VIII

1. *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U.S. 579, 646 (1952) (Jackson, J., concurring).